

STATE OF NEW YORK

7944--A

Cal. No. 1300

2025-2026 Regular Sessions

IN SENATE

May 14, 2025

Introduced by Sens. RAMOS, JACKSON, C. RYAN, S. RYAN, SCARCELLA-SPANTON -- read twice and ordered printed, and when printed to be committed to the Committee on Labor -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, passed by Senate and delivered to the Assembly, recalled, vote reconsidered, restored to third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the labor law, in relation to clarifying key provisions around elevator licensing on examinations and experience

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivisions 4 and 5 of section 954 of the labor law, as
2 added by section 1 of subpart 0 of part XX of chapter 55 of the laws of
3 2020, are amended and a new subdivision 7 is added to read as follows:

4 4. Alternative qualifications. Applicants for an elevator mechanic's
5 license or accessibility lift technician's license who do not possess
6 the industry certifications identified above may demonstrate their qual-
7 ifications and abilities, training, and continuing education by provid-
8 ing acceptable proof of:

9 (a) a certificate of successful completion and successfully passing
10 the mechanic examination of a nationally recognized training program for
11 the elevator industry including, but not limited to, the national eleva-
12 tor industry educational program or its equivalent, supplemented with
13 continuing education as may be required by this section; or

14 (b) a certificate of successful completion of the state registered
15 apprenticeship programs for the apprenticeable trades of Elevator Servi-
16 cer Repairer, including the joint apprentice and training committee of
17 the elevator industry of local 3, IBEW, EE division training program, or
18 equivalent registered apprenticeship program for elevator mechanics,
19 having standards substantially equivalent to those programs and regis-
20 tered with the bureau of apprenticeship and training, U.S. department

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 of labor or a state apprenticeship council, supplemented with continuing
2 education as may be required by this section; or

3 (c) ~~[work on elevator construction, maintenance or repair with direct~~
4 ~~and immediate supervision in this state for a period of not less than~~
5 ~~four years immediately prior to the effective date of this article~~
6 ~~supplemented with continuing education and testing as may be required by~~
7 ~~this section; or~~

8 ~~(d)]~~ successful completion of an examination established by the New
9 York state civil service commission or a municipal civil service commis-
10 sion having jurisdiction as defined by subdivision four of section two
11 of the civil service law, subsequent appointment to a position related
12 to work on elevator construction, maintenance, mechanics, inspection, or
13 repair as may be properly classified by the commissioner of civil
14 service or a municipal civil service commission having jurisdiction, and
15 work on elevator construction, maintenance, mechanics, inspection, or
16 repair, with direct and immediate supervision in this state for a period
17 of not less than four years immediately prior to the effective date of
18 this article supplemented with continuing education as may be required
19 by this section~~[-]; or~~

20 (d) in the event an elevator contractor encounters a verifiable short-
21 age of licensed mechanics, an elevator contractor may request that the
22 department issue a temporary elevator mechanic license to an elevator
23 apprentice who can provide documentation demonstrating that such appren-
24 tice is currently enrolled in an elevator apprenticeship program and has
25 a minimum of four thousand hours of elevator industry experience. A
26 verifiable shortage can be declared by a majority vote of the board, and
27 may be extended at each subsequent meeting of the board. Each temporary
28 elevator mechanic license shall be valid for forty-five days so long as
29 such temporary elevator mechanic is employed by the licensed elevator
30 contractor that requested the temporary elevator mechanic license and
31 shall be renewable so long as the shortage of license holders exists.
32 Fees shall be determined by the board.

33 5. Continuing education. The renewal of all licenses granted under the
34 provisions of subdivision four of this section shall be conditioned upon
35 acceptable proof of completion of a course designed to ensure the
36 continuing education of licensees on new and existing national, state,
37 and local conveyances codes and standards and on technology and techni-
38 cal education and workplace safety, provided the applicant was notified
39 of the availability of such courses when the license was previously
40 granted or renewed. Such course shall consist of not less than eight
41 contact hours (.8 CEU) annually and completed preceding any such license
42 renewal. The ~~[commissioner]~~ board shall establish requirements for
43 continuing education and training programs, and shall approve such
44 programs and providers, as well as maintain a list of approved programs
45 which shall be made available to license applicants, permit applicants,
46 renewal applicants and other interested parties upon request. The
47 ~~[commissioner]~~ board may promulgate rules and regulations setting forth
48 the criteria for approval of such programs, the procedures to be
49 followed in applying for such approval, and other rules and regulations
50 as the commissioner deems necessary and proper to effectuate the
51 purposes of this section.

52 7. Special provisions. No person shall erect, construct, alter,
53 replace, maintain, remove, or dismantle any conveyance, or wire any
54 conveyance from the mainline feeder terminals on the controller in
55 existing buildings or structures in the jurisdiction of this state
56 unless such person is a licensed elevator mechanic working under the

direct supervision of a licensed elevator contractor. A licensed elevator contractor is not required for removing or dismantling conveyances, which are destroyed as a result of a complete demolition of an existing building or structure.

§ 2. Paragraph (a) of subdivision 4 of section 955 of the labor law, as added by section 1 of subpart 0 of part XX of chapter 55 of the laws of 2020, is amended to read as follows:

(a) Except as provided in paragraph (b) of this subdivision, if the commissioner finds, after notice and hearing, that an individual has violated any provision of this article, ~~[he or she]~~ such commissioner may impose a civil penalty not to exceed ~~[one]~~ ten thousand dollars for each such violation. In cases where a contractor employed or relied on unlicensed mechanics, the commissioner shall impose civil penalties on the contractor or other party responsible for each person found to be working without a license by such contractor or party. Upon a second or subsequent violation within three years of the determination of a prior violation, the commissioner may impose a civil penalty not to exceed ~~[two]~~ twenty thousand dollars per violation.

§ 3. The labor law is amended by adding a new section 958 to read as follows:

§ 958. Inspection of elevators and conveyances. Except in a city with a population of one million or more, it shall be the responsibility of the owner of all elevators and other conveyances subject to this article to ensure that such equipment conforms to the following inspection and testing requirements:

1. New or altered conveyances shall be inspected and tested in accordance with the American Society of Mechanical Engineers safety code for elevators and escalators version A17.1/CSA B-44, section 8.10.

2. Existing conveyances shall be inspected and tested in accordance with the American Society of Mechanical Engineers safety code for elevators and escalators version A17.1/CSA B-44, section 8.11.

3. Inspections and tests of conveyances required under this section shall be conducted to ensure the conveyances are operated and maintained in accordance with applicable code requirements for such conveyances as adopted or determined by the department.

4. It shall be the responsibility of the owner of all conveyances to ensure that the inspections and tests required pursuant to this section are performed in compliance with the applicable code requirements for such conveyances as adopted or determined by the department.

5. All work required for inspections and the associated tests of elevators and other conveyances shall be performed by a licensed elevator mechanic and shall be physically witnessed by a licensed elevator inspector to ensure compliance with applicable code requirements for such conveyances as adopted or determined by the department.

6. All inspections of elevators and other conveyances shall be performed by a licensed elevator inspector to ensure compliance with applicable code requirements for such conveyances as adopted or determined by the department.

7. When any tests on elevators or other conveyances are performed pursuant to this section and such tests are required to be witnessed by a licensed elevator inspector in accordance with this section or applicable industry codes or standards incorporated herein, such inspections shall be conducted by a licensed elevator inspector who is employed by the state and who shall be physically present during the tests to witness such tests to ensure they are properly administered and to verify test results.

1 8. Subsequent to any inspection, the licensed elevator inspector shall
2 supply the property owner and the department with a written inspection
3 report verifying code compliance or describing any code violations
4 found. It shall be the responsibility of the department to verify
5 compliance with the requirements of this chapter and applicable code
6 requirements, as adopted or required by the department.

7 § 4. This act shall take effect immediately.